

11	30-2026-01542413 Christopher Paul Teague as Trustee of the Teague Family Trust dated August 5, 2010 as restated on August 17, 2018 vs. Rutledge	The Court has read and considered the Defendant's Motion to Vacate (ROA 70), Declaration in Support (ROA 73), Reply to Motion (ROA 75), Plaintiff's Opposition (ROA 83), and Defendant's Reply to Opposition (ROA 85). The Court take Judicial Notice of the Defendant's Ex Parte Application Motion to Set Aside Default (ROA 25), 3/13/2026 Minute Order (ROA 32), Ex Parte Application for Stay of Execution of Judgment (ROA 34), 3/17/2026 Minute Order (ROA 36), Motion to Vacate (ROA 40), 5/1/2026 Minute Order (ROA 50), Judgment – Unlawful Detainer (ROA 19), 6/5/2026 Minute Order, Declaration in Support of Default Judgment by Court CCP 585(d) (ROA 62), Complaint (ROA 2), and Judgment-Unlawful Detainer (ROA 64). Plaintiff's Opposition mistakenly states that Defendant failed to provide a proposed Answer; the Defendant's proposed Answer was attached to ROA 73. This is the Defendant's third attempt to vacate or set aside the default judgment in this matter. In this Motion, Defendant provides documentation that she electronically paid \$3,004.19 on 1/1/2026 for January 2026 rent to the Plaintiff. Plaintiff then issued a refund check to the Defendant. The Notice to Pay Rent or Quit attached to the Complaint was served on 1/15/2026 stating that January 2026 rent of \$3,264 was past due. The Notice to Pay or Quit was served after the Plaintiff returned Defendant's online rent payment. Plaintiff fails to address this issue entirely in their Opposition. In previous filings requesting to vacate/set aside the default judgment, the Defendant has indicated confusion or mistake due to the rental amount dispute, which the Defendant provides no evidence to support; however, here the Defendant shows that she paid, at minimum, a portion of her rent for January 2026, which the Plaintiff refunded and then served her with a Notice to Pay or Quit for the entire rental amount days later. This was the first month the new rental rate took effect on the subject property. The Court finds that the Defendant met her burden under California Code of Civil Procedure section 473(b) of mistake and excusable neglect. The Court sets aside the default and default judgment. The Court Clerk is ordered to file the Defendant's Answer, which is attached to ROA 73. As the Writ of Possession was already executed and the Defendant is not contesting possession of the property, as she has relocated, the Court will set this matter for a Court Trial on 10/26/2026 at 1:30 PM in Department C61. All parties and witnesses are to appear in person. All parties are to have three copies of any documentary evidence they wish to present to the Court. The parties are ordered to meet and confer with each other prior to the day of trial to exchange documents and determine if settlement may be reached in this matter. All parties are ordered to appear for the Court Trial on 10/26/2026 at 1:30 PM without any further order or notice.
12	30-2026-01553185 Gelt Oasis Exchange, LLC vs. Monroe	The Court has reviewed the Defendant's Motion to Vacate Default Judgment (ROA 30) and Proof of Service (ROA 36).